

CV-24-005270 DAVIS, MICKEY ERNEST vs COUNTY OF STANISLAUS – Defendant C.W. Brower, Inc.’s Motion for Terminating and Monetary Sanctions for Failure to Appear at Court Ordered Deposition – DENIED, as to terminating sanctions; GRANTED, as to monetary sanctions.

County: stanislaus

Division: Civil Law and Motion

Department: 23

Hearing date: 2012-04-02

Motion: The Court finds that Plaintiff's failure to comply with the Court's 4-10-26 order constitutes misuse of the discovery process (Code Civ. Proc. § 2023.010(d), (g).) However, under the circumstances the Court declines to award terminating sanctions at this time. Plaintiff is again ordered to appear for his deposition on a date and time to be selected and properly noticed by defense counsel, no later than October 30, 2026. In addition, Plaintiff is cautioned that failure to comply in this instance will likely result in terminating sanctions being granted in the future. The Court further finds that moving Defendant is entitled to an award of monetary sanctions in connection with the instant motion. (Code Civ. Proc. §§ 2025.450(g), 2023.010, 2023.030; Cal. Rules of Ct., rule 3.1348(a).) Therefore, Plaintiff is ordered to pay \$540 in monetary sanctions to defense counsel. This award is made in addition to the monetary sanctions previously imposed by the Court's order on 4-10-26.

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